

Amendment No. 1 to HB0589

Todd
Signature of Sponsor

AMEND Senate Bill No. 755

House Bill No. 589*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 43, Chapter 1, Part 6, is amended by deleting the part and substituting the following:

43-1-601. Creation.

There is created and established the Tennessee agriculture and forestry hall of fame, governed as provided by this part. It is the intent of the general assembly that the Tennessee agriculture and forestry hall of fame be the successor to, and a continuation of, the Tennessee agricultural hall of fame, established by Chapter 43 of the Public Acts of 1937.

43-1-602. Board — Members.

(a) There is established the Tennessee agriculture and forestry hall of fame board by transfer and expansion of the duties and responsibilities of the Tennessee agricultural hall of fame board. The board consists of nine (9) members.

(b) Effective July 1, 2025, the existing membership of the Tennessee agricultural hall of fame board is vacated and reconstituted as the Tennessee agriculture and forestry hall of fame board, with the members of the board to be appointed as follows:

- (1) The commissioner of agriculture or the commissioner's designee;
- (2) The senior vice chancellor of the University of Tennessee Institute of Agriculture;
- (3) The dean of Tennessee State University College of Agriculture;
- (4) The president of the Tennessee Farm Bureau Federation;

(5) The Tennessee FFA State Director;

(6) One (1) member from the middle grand division appointed by the speaker of the house of representatives;

(7) One (1) member from the eastern grand division appointed by the speaker of the senate;

(8) One (1) member from the western grand division appointed by the governor; and

(9) One (1) member from the state at-large appointed by the governor.

(c) The persons appointed under subdivisions (b)(6)–(9) shall demonstrate significant ties to agriculture or forestry in this state by engagement in agricultural or forestry business, science, or engineering or by employment or service with an entity that serves the conservation of natural resources or betterment of farming or forestry interests.

(d) To stagger the terms of the newly appointed board members, the appointing authorities shall make initial appointments as follows:

(1) The person appointed under subdivision (b)(6) is appointed for a term of six (6) years, which expires on June 30, 2031;

(2) The person appointed under subdivision (b)(7) is appointed for a term of four (4) years, which expires on June 30, 2029; and

(3) The persons appointed under subdivisions (b)(8) and (9) are appointed for terms of two (2) years, which expire on June 30, 2027.

(e) Members serving on the Tennessee agricultural hall of fame board as of June 30, 2025, may be reappointed to serve as members of the Tennessee agriculture and forestry hall of fame board after such date.

(f)

(1) Members, except as provided in subsection (d) and those appointed to complete the term of a former member, are appointed to full six-year terms, or until their successors are appointed.

(2) Following the expiration of the members' initial terms as prescribed in subsection (d), all six-year terms begin on July 1, and terminate on June 30, six (6) years thereafter. Vacancies must be filled by the respective appointing authority.

(g) The board shall elect from its membership a chair, whose term is for one (1) year. The board may elect such other officers as it considers necessary for the efficient operation of the board.

(h) The board is administratively attached to the department of agriculture.

(i) Five (5) members of the board constitutes a quorum.

(j) All board members serve without compensation.

(k) The commissioner of agriculture shall call the first meeting of the board on or after July 1, 2025. Subsequent meetings of the board are at the call of the chair.

43-1-603. Acceptance, admission, and induction to hall of fame — Rules.

(a) The Tennessee agriculture and forestry hall of fame is under the general supervision of the Tennessee agriculture and forestry hall of fame board.

(b) A person must not be admitted into the Tennessee agriculture and forestry hall of fame except by written presentation to the board of the candidate's achievements in agricultural or forestry activities and a majority vote of the board for acceptance of the candidate into the hall of fame.

(c) Upon the advice and recommendation of the board, the department of agriculture is authorized to promulgate rules for the efficient administration of this part, including, but not limited to:

(1) Qualifications of candidates necessary for admission into the Tennessee agriculture and forestry hall of fame;

- (2) Nomination and evaluation procedures of candidates seeking acceptance into the Tennessee agriculture and forestry hall of fame;
- (3) Operational procedures necessary to conduct board business;
- (4) Assessment of fees for the administration of this part; and
- (5) Expenses for which the board is authorized to make expenditures, in addition to the expenditures authorized by § 43-1-604(b).

(d) All rules promulgated pursuant to this part must be in accordance with the Uniform Administrative procedures Act, compiled in title 4, chapter 5.

(e) The board shall strive to admit a person to the Tennessee agriculture and forestry hall of fame only upon a showing that the person has made a significant impact on the improvement of agriculture or forestry in this state through agricultural or forestry business, invention, production, science, or technology and that prior to such achievement, the person resided in this state for a definite period of time, to be determined by the board. A person is not eligible for admission into the Tennessee agriculture and forestry hall of fame until five (5) years after the date of such person's death.

43-1-604. Gifts, bequests, and awards.

(a) For the purpose of administering this part, the board may accept and receive gifts, contributions, and bequests of funds and in-kind goods and services from individuals, foundations, corporations, and other organizations or institutions.

(b) Funds received by the board are to be administered for the board by the department of agriculture and may be used solely for:

- (1) Advancement and promotion of the Tennessee agriculture and forestry hall of fame;
- (2) Promotion of hall of fame inductees' achievements and contributions to agriculture and forestry in this state;

(3) Providing awards to or for inductees upon induction into the hall of fame, and

(4) Other expenditures authorized by rule pursuant to § 43-1-603(c)(5).

(c) Awards provided in recognition of inductees to the hall of fame may be duplicated only upon majority vote and approval of the board and may be housed, maintained, and displayed only upon the oversight, administration, and approval of either the Tennessee agricultural museum or the University of Tennessee.

43-1-605. Name exclusivity and approved use.

(a) The use of the name "Tennessee Agriculture and Forestry Hall of Fame" in Tennessee to denote a hall of fame for persons with achievements in agricultural or forestry activities shall be exclusive to the board; provided, that the use of the name may be granted to the department of agriculture or another entity with the approval of the board.

(b) A person shall not use the name "Tennessee Agriculture and Forestry Hall of Fame" in this state to denote a hall of fame for persons with achievements in agricultural or forestry activities without the board's approval.

SECTION 2. All rules, procedures, and practices in effect under the creating statutes for the Tennessee agriculture hall of fame board, formerly compiled in §§ 43-1-601 — 43-1-607, shall continue in effect until such time as the department of agriculture or Tennessee agriculture and forestry hall of fame board, as applicable, takes appropriate action to modify the rules, procedures, or practices. Assets, liabilities, contracts, property, records, and unexpended balances of appropriations or other funds employed, held by, or available to the Tennessee agriculture hall of fame board are transferred to the Tennessee agriculture and forestry hall of fame board.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. For purposes of promulgating rules and carrying out administrative duties necessary to effectuate this act, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect on July 1, 2025, the public welfare requiring it.